

		The Court will interlineate the current date for the Mandatory Settlement Conference in paragraph 7(a) which is October 9, 2026, at 9:00 a.m. in Department C34, as well as the current date for the jury trial in paragraph 9(b) which is November 23, 2026, at 9:00 a.m. in Department C34. The order relieving counsel Michael J. Sachs and Scott D. Nelson, Callahan & Blaine, PC as counsel of record for Plaintiff is effective upon Moving Counsel filing proof of service of a copy of the signed order, on the client and on all parties that have appeared in the case. (California Rules of Court, rule 3.1362(e).) Moving Counsel to give notice.
7.	30-2023-01357282 Merino vs. Pacific Coast Patrol, Inc	1. Motions-Other (to Compel Depo & Enforce Subpoena) <u>Motion to Compel Deposition of Defendant’s Person Most Qualified</u> Plaintiff, Steven Merino (“Plaintiff”), moves for an order compelling the Person(s) Most Qualified (“PMQ”) for Defendant, Pacific Coast Patrol, Inc. (“Defendant” or “Pacific Coast Patrol”) to appear and testify and to produce documents specified in the Third Amended Notice of Deposition, as well as an order awarding sanctions in the amount of \$3,060 against Defendant and its attorneys, Knapp, Petersen & Clarke, including handling attorneys Stephen C. Pasarow, Esq., Kevin J. Slack, Esq. and Asante T. Nkosi, Esq. In compliance with the Court’s July 9, 2026, the parties have met and conferred and filed a Joint Statement. (ROA 243.) Plaintiff has also filed an Amended Separate Statement that includes the objections/response to the at issue Third Amended Notice of Deposition and Request for Production of Documents, albeit for all requests. The Court addresses the merits based on what remains in dispute and the contentions set forth in the Joint Statement. Code of Civil Procedure section 2025.450 provides that a party noticing a deposition “may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice” if, “after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc. § 2025.450(a).) A motion to compel under this section “shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450(b)(1).) Good cause is shown through “declarations containing <i>specific facts</i> justifying inspection of the documents described in the notice.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group June 2026 update) ¶ 8:801.2.) If the moving party demonstrates good cause, then the opposing party must justify any objections. (<i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) At issue is the Third Amended Notice of Deposition and Request for Production of Documents which Plaintiff served on November 17, 2025, with a deposition date of December 12, 2025. (Declaration of Erik Fritz, ¶ 12, Ex. G.) Defendant served an objection alleging its agreement to comply, but did not

appear, produce documents or file a motion to prevent, protect, or quash the deposition notice. (*Id.*, ¶ 13, Ex. H.) Plaintiff took a certificate of non-appearance after Defendant’s Person Most Qualified (“PMQ”) did not appear on December 12, 2025. (*Id.*, ¶ 14, Ex. I.)

Defendants initially contended that the motion to compel is moot as the deposition of Christian Jordan is scheduled for July 22, 2026. (Stack Decl., ¶ 9.) The reply acknowledged that PMQ deposition is scheduled for July 22, 2026. However, based on the Joint Statement, it appears that the *individual* deposition of Christian Jordan was taken on July 22, 2026, but not completed, not the deposition of Defendants’ PMQ. (Joint Statement, 5:1-2.)

The Joint Statement provides that Defendants are willing to produce for deposition Pacific Coast Patrol’s Person Most Qualified to testify about the enumerated nine categories at a time mutually convenient for all concerned, and that the Person Most Qualified will be Christian Jordan who is the Qualified Manager who runs the day-to-day operations of Pacific Coast Control. (Joint Statement, 4:25-28.)

Based on the foregoing, it appears that no deposition Pacific Coast Patrol’s Person Most Qualified occurred on July 22, 2026.

Under these circumstances, the Court GRANTS the motion to compel the deposition of Pacific Coast Patrol’s Person Most Qualified. Said deposition to be conducted within 30 days, on a date and time that is mutually agreeable to all parties.

With regards to the production of documents, there are 43 document requests.

“Unless otherwise limited by order of the court . . . any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence . . .” (Code Civ. Proc. § 2017.010.)

This action arises out of a vehicle accident. It is alleged that on or about May 31, 2022, Defendant, Ignacio Martinez (“Martinez”), negligently left his vehicle unattended in the middle of the highway, causing an obstruction and/or hazard, and that Plaintiff’s vehicle collided with the unattended vehicle, as a result. The Complaint asserts two causes of action for motor vehicle negligence and general negligence alleging that Defendant entrusted the motor vehicle to Defendant Martinez, and that Defendant Martinez was the agent and employee and acted within the course and scope of their employment with Defendant. Thus, it appears that Plaintiff asserts that Defendant is vicariously liable for the negligence of Defendant Martinez, and that Defendant negligently entrusted the vehicle to Martinez.

Defendant provides that the following specific requests need the assistance of the court: Request Nos. 9, 13, 14, 15, 19, 20, 26, 31, 33, 35, 36, 41, and 42.

In view of the claims and allegations in this case, Plaintiff does not show good cause through declarations containing specific facts justifying each of the requests. Plaintiff merely provides argument in the Amended Separate Statement.

As to the requests at issue, good cause does not appear on the face of Request No. **9** [All electronically stored information that reflects the state of mind of Plaintiff at the time of the incident]; **19** [A copy of all sub rosa films taken of Plaintiff at the time of, or after, the incident]; **20** [All documents relating to any sub rosa of Plaintiff, including ESI, social media, photos, film, contracts,

scope-of-work agreements, logs, journals, payments, retainers, nondisclosure agreements, and related documents]; **26** [All documents involving ISO claim searches conducted with regard to Plaintiff]; **31** [All documents reflecting the policies and procedures in effect at the time of the incident]; **33** [All documents that identify each contract or agreement for each person involved in supervising the conditions at the subject property where Plaintiff was injured, in effect on the date of the incident]; **35** [All documents that identify each person who had access to any ESI related to the incident before Defendant was on notice of the incident, from the date of the incident]; and **36** [All documents identifying each time over the past 10 years that Defendant reprimanded an employee at the subject property for failing to maintain the subject vehicle in a safe condition].

Therefore, the Court DENIES the motion to compel as to Request Nos. 9, 19, 20, 26, 31, 33, 35, and 36.

However, good cause appears on the face of the remaining requests, including Request Nos. **13** [A copy of each report generated as a result of the incident that is in Defendant's possession, custody, or control, including the control of any agents], **14** [All statements given by Defendant relating to the incident, whether written, oral, or taped], **15** [All statements given by any person relating to the incident, whether written, oral, or taped], **41** [All documents from Defendant's vehicle involved in the incident that were reflective or visible at night]; **42** [All documents that identify communications related to the incident]. The requests themselves seek documents concerning the subject incident.

As to Defendant's objections, Defendant's "concern" that Request Nos. **13, 14, and 15** invade attorney work product and attorney client privileges may be addressed by providing a **privilege log** for such documents.

As to Request No. **41**, Defendant contends that it is unclear what is being sought. It appears that Plaintiff is seeking any documents that were reflective or visible at night that were in Defendant's vehicle involved in the incident. Defendant can provide a response based on its understanding of this request.

As to Request No. **42**, Defendant provides that the request is "overbroad, vague and ambiguous and could improperly seek privileged communications." The request is not overbroad, vague, or ambiguous. Privileged communications may be addressed by providing a **privilege log**.

Based on the foregoing, the Court GRANTS the motion as to Request Nos. 13, 14, 15, 41, and 42 for the production of all responsive, non-privileged documents. To the extent that there are any privileged documents, Defendant may provide a privilege log.

As to the others requests at issue, good cause appears from the face of these requests as they seek documents relevant to the allegations and claims, as well as defenses and Defendant's contentions, in this matter. Significantly, Defendant concedes to producing documents. Defendant states that it "will proceed with producing available documents subject to the below mentioned clarifications and concerns. We would request that it be clarified that the plaintiff is not knowingly seeking communications and information exchanges between defendants and their insurance carrier and counsel." (Joint Statement, 5:13-16.)

Based on the foregoing, and in particular Defendant's concession, the court GRANTS the motion as to Request Nos. 1-8, 10-12, 16-18, 21-25, 27-30, 32, 34, 37-40, 43.

Responsive, non-privileged documents and any privilege log to be produced seven (7) days before the agreed-upon date for the deposition, consistent with the ruling above.

Monetary Sanction

The Court DENIES monetary sanctions.

Motion to Enforce Subpoena

Plaintiff, Steven Merino (“Plaintiff”), moves for an order enforcing the subpoena issued to Uber Technologies, Inc. (“Uber”) on September 9, 2025, issuing evidence and issue sanctions against Uber for failure to comply with the subpoena, and awarding monetary sanctions in the amount of \$2,060 against Uber.

In compliance with the Court’s July 9, 2026, Minute Order, on July 24, 2026, Plaintiff filed a proof of service showing personal service of the moving papers on Uber. (ROA 232.) Therefore, it appears that service has been properly effectuated.

Plaintiff moves to enforce/compel the Subpoena pursuant to Code of Civil Procedure section 1987.1 and 2025.480 on the grounds that Uber has failed to comply with the Subpoena.

No opposition has been filed.

Code of Civil Procedure section 1987.1 provides, in pertinent part: “[T]he court, **upon motion reasonably made** by [a party, witness, consumer, or employee] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it” (Code Civ. Proc. § 1987.1(a).)

A motion under Code of Civil Procedure section 2025.480(a) “shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040.”

Here, the motion was reasonably made under Code of Civil Procedure section 1987.1, and an adequate attempt to meet and confer was made. On September 11, 2025, Plaintiff personally served a Deposition Subpoena for Production of Business Records to Uber Technologies, Inc. (“Uber”), through its registered agent, CT Corporation System, with a production date of October 24, 2025 (the “Subpoena”). (ROA 135, Declaration of Erik Fritz (“Fritz Decl.”), ¶ 11, Ex. D.)

In response, Uber failed to produce any documents, served no objections, filed no motion to quash, and failed to otherwise respond. (Fritz Decl., ¶ 12.) On November 17, 2025, Plaintiff sent a written follow-up letter demanding compliance with the Subpoena, but Uber again failed to respond or produce documents. (Fritz Decl., ¶¶ 12-14, Ex. E.)

Merits

Discovery may be obtained from a third party through a deposition subpoena for the production of business records. (Code Civ. Proc. § 2020.010(a)(3).) A deposition subpoena may command only the production of business records. (Code Civ. Proc. § 2020.020(b).)

A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item. (Code Civ. Proc. § 2020.410(a).) Code of Civil Procedure section 2020.410(c) states, “A deposition subpoena that commands only the production of business records for copying need not be accompanied by an affidavit or declaration showing good cause for the production of the business records designated in it. It shall be directed to the custodian of those records or another person qualified to certify the records. It shall command compliance in

accordance with Section 2020.430 on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later.” (Code Civ. Proc., § 2020.410(c).)

Code of Civil Procedure section 1987.1 provides, in pertinent part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc. § 1987.1(a)-(b).)

Code of Civil Procedure section 2025.480(a) also provides: “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.”

“The nonparty discovery statutes establish a one-step process for a nonparty responding to a business records subpoena.” (*Board of Registered Nursing v. Superior Court of Orange County* (2021) 59 Cal.App.5th 1011, 1033.) “Upon receipt of the subpoena, a nonparty must make the production on the date and in the manner specified, unless grounds exist to object or disregard the subpoena. The nonparty’s compliance with the subpoena is clear on the date specified for production. It has either produced documents as requested in the subpoena, or not. On that date, the subpoenaing party has all of the information it needs to meet and confer regarding the nonparty’s compliance and, if unsatisfied, prepare a motion to compel.” (*Ibid.*) “This one-step process minimizes the burden on the nonparty. It may comply (or not) with the subpoena,” (*Ibid.*)

Here, Plaintiff’s counsel provides that on May 31, 2022, Defendant Ignacio Martinez was walking/running on the freeway after parking his vehicle unattended in the middle of the freeway, creating an obstruction and hazard, and that Plaintiff Merino’s vehicle collided with the unattended vehicle, resulting in bodily injuries and property damage. (Fritz Decl., ¶ 4.) Plaintiff’s counsel also provides that this case is related to another case; that the first case, *Sleiman v. Moreno* (Case No. 30-2023-01323824), was filed on May 4, 2023 by plaintiffs Nicholas Sleiman and McKenzie May, who were passengers in the Uber vehicle driven by Steven Merino, and that these plaintiffs allege personal injuries resulting from the collision and assert negligence claims against Merino, Uber, Rasier LLC, and Rasier-CA LLC; and that instant second action, *Merino v. Pacific Coast Patrol, Inc.* (Case No. 30-2023-01357282), was filed on October 13, 2023, by Steven Merino, the Uber driver involved in the accident. (Fritz Decl. ¶¶ 5-10, Exs. A-C.) The Subpoena consists of 14 document requests seeking audio recordings, written communications, photographs, recorded statements or interviews, transcripts of any recorded statements, and transcripts of any written statements, relating to and/or taken in connection with the subject incident involving the vehicle collision on May 31, 2022 that is the subject of this action. (Ex. D to Fritz Decl.) The documents requests also seek all documents and/or electronically stored information concerning any claims filed in connection with the incident submitted by Plaintiff and by any third party, reflecting any payments issued by Uber and by any insurers in connection with the incident, and relating to the driver history of Plaintiff Merino and relating to the speed, “GPS time-stamped for 30 minutes before until 30 minutes after the crash.” (*Ibid.*) As the document requests seek documents and/or electronically stored information that directly relate to the subject incident of the related matters, there appears to be good cause for these document requests.

Based on the foregoing, the Court GRANTS the motion to enforce the Subpoena and compel compliance.

		<i>Monetary Sanction</i> Plaintiff seeks monetary sanctions against Uber for failure to comply with the Subpoena, requests that Uber pay to Plaintiff the reasonable expenses incurred in bringing this motion, including reasonable attorney’s fees, in the amount of \$2,060.00, pursuant to Code of Civil Procedure sections 2025.480, 1987.1, 2020.240, 2023.010-2023.050, et seq. The court may impose monetary sanctions against anyone engaging in conduct that is a misuse of the discovery process. (Code Civ. Proc. § 2023.030(a).) In light of the Court’s ruling, the Court GRANTS Plaintiff a monetary sanction against Uber in the reduced amount of \$1,310 (2.5 hours x \$500 + \$60 filing fee), to be paid within 30 days. (Code Civ. Proc. §§ 1987.2(a), 2025.480(j), 2023.030(a).) There is no showing that Uber acted with substantial justification or that other circumstances make the imposition of a monetary sanction unjust. Plaintiff also requests an additional sanction of \$1,000 pursuant to Code of Civil Procedure section 2023.050. The notice of motion does not clearly specify that Plaintiff is seeking an additional \$1,000 monetary sanction pursuant to Code of Civil Procedure section 2023.050. Therefore, the request for an additional sanction of \$1,000 is DENIED. Plaintiff to give notice.
8.	30-2024-01442123 Huy vs. Lake Mission Viejo Association	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Production Defendant Park West Landscape Maintenance Inc. (“Defendant”) moves to compel further responses to Requests for Production Nos. 28-30, 34, and 50 plus \$1,845 in sanctions. Defendant also moves to compel further responses to Form Interrogatories Nos. 2.13, 6.5, 8.7, 10.1, and 17.1 plus \$1,845 in sanctions. Plaintiff Nancy Huy (“Plaintiff”) opposes both motions. In her opposition, Plaintiff requests sanctions against Defendant and Defendant’s counsel of record, jointly and severally, in the amount of \$5,500.00 pursuant to Code of Civil Procedure section 2023.010, section 2023.020 and 2023.300(d), for filing procedurally defective motions, failing to properly meet and confer and filing motions that lack merit. Consistent with the Court’s 07/06/2026 order, the Court finds that the motions are timely and the Court will reach the merits of the motions. (ROA 124.) The <u>motion to compel further responses to form interrogatories</u> is GRANTED as to interrogatories 2.13(g) (Plaintiff must state the condition for which the substance was prescribed or furnished), 6.5, and 8.7 (the math provided by Plaintiff does not add up) and DENIED as to 10.1 and 17.1. The <u>motion to compel further responses to requests for production</u> is DENIED as to requests 28-30, 34, and 50.